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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

WEST BENGAL ELECTRICITY REGULATORY COMMISSION

NOTIFICATION

No. 46/WBERC

Kolkata, the 31st May, 2010.

In exercise of the powers conferred by sub-section (1) and clauses (za) and (zb) of sub-section (2) of section 181 read with sub-section (1) of section 57 and sub-section (1) of section 59 of the Electricity Act, 2003 (36 of 2003) and all powers enabling it on that behalf and in supersession of the notification No.24/WBERC dated 18th October, 2005 published in the Kolkata Gazette, Extraordinary on October 19, 2005, the West Bengal Electricity Regulatory Commission hereby makes the following regulations:—

1.0 Short title, extent and commencement:

- i) These regulations may be called the West Bengal Electricity Regulatory Commission (Standards of Performance of Licensees Relating to Consumer Services) Regulations, 2010.
- ii) They extend to the whole of West Bengal.
- iii) They shall come into force on the date of their publication in the Official Gazette.

2.0 Definitions:

2.1 In these regulations, unless the context otherwise requires,—

- i) The 'Act' means the Electricity Act, 2003;
- ii) 'Alteration of Service' means alteration of consumer's installation or licensee's installation within the premises of a consumer and includes shifting of installation etc.
- iii) 'Annexure' means an Annexure to these regulations;

- iv) 'Augmentation of distributing main' means capacity enhancement of existing distribution transformer(s) or feeder/ line;
- v) 'Augmentation of Feeder' or 'Augmentation of Line' or 'Augmentation of Cable' means increase of the rated capacity of the existing feeder or line or cable, as the case may be, with or without extension of it.
- vi) 'Commission' means the West Bengal Electricity Regulatory Commission;
- vii) 'Consumer Reference Zone' means the unique part of the distribution network of the licensee which can always be used to identify consumer's premises with such part uniquely in relation to any interruption of supply to such consumer without any ambiguity subject to the condition that this part shall not include the service line for the consumer from distributing main or any licensee's asset within the premises of the consumer;
- viii) 'Distribution Transformer' means transformer for stepping down of voltage from HV to MV/LV in distribution system;
- ix) 'Distribution Sub-Station' means transformer(s) for stepping down voltage from HV to MV/LV in distribution system including all accessories to such transformer(s);
- x) 'Extension of Feeder' or 'Extension of Line' or 'Extension of Cable' means extension of existing feeder or line or cable, as the case may be, without increasing its rated capacity;
- xi) 'Extra High Voltage' or 'EHV' or 'EHT' means the voltage exceeding 33,000 volts under normal conditions subject, however, to the variation allowed by the Indian Electricity Rules, 1956 or the regulations made by the Central Electricity Authority (CEA) as may be applicable;
- xii) 'Grievance Redressal Officer' means a Grievance Redressal Officer as specified in the Regulations made under sub-sections (5) and (7) of section 42 of the Act;
- xiii) 'High Voltage' or 'HV' or 'HT' means the voltage exceeding 650 volts but not exceeding 33,000 volts under normal conditions subject, however, to the variation allowed by the Indian Electricity Rules, 1956 or the regulations made by the Authority, as may be applicable;
- xiv) 'HT network' includes EHT network;
- xv) 'Intending Consumer' means a person who has applied to a licensee to obtain supply of electricity and shall remain as such of that licensee till he is supplied with electricity against such application or his application is rejected lawfully;
- xvi) 'Low Voltage' or 'LV' or 'LT' means the voltage not exceeding 250 volts under normal conditions subject, however, to the variation allowed by the Indian Electricity Rules, 1956 or the regulations made by the CEA, as may be applicable;
- xvii) 'LT net work' includes MT network;
- xviii) 'Licensee' means the licensee as defined in the Supply Code;
- xix) 'Medium Voltage' or 'MV' or 'MT' means the voltage exceeding 250 volts but not exceeding 650 volts under normal conditions subject, however, to the variation allowed by the Indian Electricity Rules, 1956 or the regulations made by the CEA, as may be applicable;
- xx) 'Regulations' means the regulations made by the Commission under the Act;
- xxi) 'Rules' means the rules made under the Act;
- xxii) 'Rural area' means an area which is not an urban area as defined in clause (xxv) and falls within the jurisdiction of the Commission;

- xxiii) 'Supply Code' means the regulations specified by the Commission under section 50 of the Act;
- xxiv) 'Tariff Regulations' means the regulations specified by the Commission under section 61 of the Act;
- xxv) 'Urban area' means a municipal area as defined in clause(d) of Article 243P of the Constitution of India and includes industrial townships as defined in the proviso to Article 243Q of the Constitution of India, cantonment boards, essential railway establishments like stations, yards, workshop, traction sub-station etc. falling within the jurisdiction of the Commission.

2.2 Words and expressions used and not defined in these regulations, but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.0 Procedure for giving New Electric Connection, Extension of Load and Alteration of Service:

- 3.1 An intending consumer or an existing consumer seeking an inspection by the licensee of his premises which is situated within the area of supply of the licensee and from whom he intends to obtain supply of electricity or extension of load and/or alteration of service, as the case may be, shall, for the purpose of receiving from the licensee an estimate of expenditure to be borne by him as applicable for a new electric connection in terms of regulation made under section 46 of the Act as also the deposit(s) to be made by him for the aforesaid purpose, request the licensee for the same, in writing, in the form given in Annexure-A, completed in every respect along with an earnest money as specified below through banker's cheque or bank draft or cash for which an employee of the licensee, duly authorized to receive such money on behalf of the licensee, shall give a signed and dated receipt under the licensee's stamp / seal.

Earnest Money:-

A. For LV and MV supply

- (i) For industrial purpose – Rs.2000/-
- (ii) For commercial purpose for contract demand of 10 KVA or above – Rs. 1000/-
- (iii) For purposes other than (i) and (ii) above – Rs. 200/-

B. For HV and EHV supply

- (i) For 11KV – Rs. 5,000/-
- (ii) For 33 KV – Rs. 20,000/-
- (iii) For 132 KV – Rs.1,00,000/-

Provided that the said earnest money shall be adjusted with the amount, which the licensee may charge in due course from the intending consumer or the existing consumer, as the case may be, in accordance with regulations made under section 46 of the Act and/or deposit(s) to be made by him:

Provided further that if no amount is to be charged from the intending consumer or the existing consumer, as the case may be, in accordance with the regulations made under section 46 of the Act and / or no deposit is to be made by him or if such chargeable amount is less than the earnest money deposited, the earnest money or the difference between the two, as the case may be, shall be either adjusted with the electricity bill(s) of the consumer for the first three months or refunded through refund voucher / cheque within three months from the date of giving connection or extension of load and/or alteration of service. Any delay on the part of the licensee in refund of the adjusted amount shall attract interest at a rate equal to the rate specified by the Commission under section 47 of the Act for the security deposit:

Provided also that the said earnest money shall be forfeited if the intending consumer or the existing consumer, as the case may be, fails to pay and / or deposit the amounts, which the licensee may determine as expenditure to be borne by the intending consumer or the existing consumer, as the case may be, in terms of the regulations made under section 46 of the Act and as deposit(s) to be made by the latter, within a period of 90 days from the date of issue of the intimation in this behalf from the licensee.

3.1.1 The licensee shall, on receipt of the application in the form given in Annexure – A, completed in every respect, from the intending consumer or the existing consumer, as the case may be, cause an inspection to be conducted at the premises to which supply of electricity or extension of load and/or alteration of service, is required, by his authorised representative. After such inspection the licensee shall send to the intending consumer or the existing consumer, as the case may be, a quotation within the time period specified below :—

A. For LV and MV supply —

- (i) In Rural area – within 28 days
- (ii) In Urban area – within 14 days

B. For HV and EHV supply —

- (i) For 11 KV – within 30 days
- (ii) For 33 KV – within 45 days
- (iii) For 132 KV – within 60 days

All the above time periods shall be counted from the date of receipt of request letter of the intending consumer or the existing consumer, as the case may be, submitted in the form given in Annexure – A, completed in every respect, along with the earnest money specified in regulation 3.1:

Provided that wherever a new sub-station is required to be erected and commissioned in order to supply power to an intending consumer or for extension of load in respect of an existing consumer, the provisions of regulation 4.4 or 5.4, as the case may be, shall apply.

3.1.2 The quotation shall include the following:

- i) Service connection charge based on the regulations made under section 46 of the Act to recover the expenditure of any expenses to be incurred in providing the electric line or electrical plant to be used for the purpose of providing the supply against the application.
- ii) Adjustment of earnest money and accrued interest thereon, if any.
- iii) Amount of security deposit.
- iv) Full cost of the meter where the applicant opts to purchase the meter as applicable.
- v) The total amount to be deposited by the intending consumer / the existing consumer, as the case may be, on the basis of the above charges towards effecting the service as requested for by the applicant.
- vi) The period of validity of the quotation and the mode of payment of service connection charges and security deposit.
- vii) The information that, if the service connection charge is not deposited within the validity period, earnest money will be forfeited and no interest on earnest money shall be payable to the applicant.
- viii) Request to submit the duly filled in Annexure – B and to execute the agreement wherever applicable.
- ix) The applicable tariff scheme for the relevant purpose of supply as on date of issuing of the quotation.
- x) The quotation may or may not include the offer letter depending on the practices of the licensee.

3.1.3 An intending consumer or an existing consumer, as the case may be, shall, after making the payment(s) and/ or deposit(s) of the estimated expenditure as mentioned in regulation 3.1.1 through banker's cheque or bank draft or cash to the licensee, within a period of 90 (ninety) days from the date of issue of the quotation from the licensee determining the payments and deposits in this behalf, submit an application in the form given in Annexure – B, completed in every respect, seeking supply of electricity or extension of load and/or alteration of service, as the case may be, to his premises.

3.2 Clearance required for new connection:

3.2.1 No new connection shall be given unless the following document(s) is/are submitted by the intending consumer with the application in the form given in Annexure–A, completed in every respect, where applicable.

(a) In-principle clearance for establishment from the Pollution Control Board concerned, wherever applicable.

(b) Document(s) of bonafide occupation or ownership of a premises, such as Passport / Voter Identity Card / Rent Bill / Rent Control Challan / Telephone Bill / Municipal or any other Tax Bill / any other document issued by any Ministry or Department of Government showing his occupancy in the premises etc.

(c) Way leave permission in the specified format in Form –1.

4.0 Time Limits for New Connection:

4.1 Time Limit for New connection where distributing main already exists.

Where distributing main already exists, the licensee shall give new connection for supply of electricity within 30 days from the date of receipt of the application requiring such supply, in the form given in Annexure – B, completed in every respect.

4.2 Time Limits for New connection where augmentation of the distributing main and/or extension of feeder/ line/ cable will be required.

Where the distributing main will need to be augmented and/or extension of feeder/ line/ cable is required in order to supply power to an applicant, the licensee shall supply electricity to the intending consumer within the time limits specified below from the date of receipt of the application for supply in the form given in Annexure–B, completed in every respect :–

A. For LV and MV supply where augmentation of the distributing main is required but additional pole(s) is/are not required for extension of overhead line or no extension of overhead line is required – within 40 days;

B. For LV and MV supply where augmentation of the distributing main is required, and/or extension of underground cable upto 100 metres is required – within 45 days;

C. For LV and MV supply where augmentation of the distributing main is required and / or extension of overhead line with additional pole(s) is/are required – within 60 days;

D. For LV and MV supply where augmentation of the distributing main is required and / or extension of underground cable above 100 metres is required – within 90 days;

E. For HV and EHV Supply – within 180 days;

4.3 Time Limits for New connection where for supply of electricity to an applicant commissioning of a new transformer and / or bay along with accessories in an existing substation will be required.

Where a new transformer and/or bay along with accessories will need to be commissioned in any existing substation in order to supply electricity to an applicant, the licensee shall supply electricity to the applicant within the period specified below from the date of receipt of the application for supply in the form given in Annexure – B, completed in every respect.

- A. For a Distribution Substation – within 90 days.
- B. For a 33 / 11 KV or 33/6 KV Substation – within 150 days.
- C. For a 132 / 33 KV Substation – within 270 days.

4.4 Procedure and Time Limits for New connection where for supply of electricity to an applicant erection and commissioning of a new substation will be required.

- 4.4.1 Where a new substation will need to be erected and commissioned in order to supply electricity to an applicant, the licensee shall, within a period of 30 days from the date of receipt of the request letter from the applicant in the form given in Annexure – A, completed in every respect, intimate the applicant, in writing, the facts that effecting supply to him will involve erection and commissioning of a new substation and the licensee will take a decision on establishment of such substation only after considering a detailed techno-economic feasibility study report.
- 4.4.2 The licensee shall, in such a case, along with the intimation mentioned in regulation 4.4.1 offer the applicant the option between taking refund of the earnest money and keeping the earnest money with the licensee. While giving the intimation, the licensee shall also ask for option regarding the mode of payment i.e. whether through money order or cheque or pay order in case the applicant opts for refund or if it is required to be refunded in accordance with regulation 4.4.6 (b).
- 4.4.3 In case the applicant opts for taking refund of the earnest money tendered by him, the licensee shall refund the same to the applicant, within a period of 15 days from the date of receipt of the communication in this respect from the applicant, by money order / cheque / pay order whichever is mutually convenient and in that event no techno-economic feasibility study will be undertaken by the licensee and the application of the applicant will be treated as cancelled. The date of refund will be considered as the date of dispatch of such money order/ cheque / pay order through courier or post.
- 4.4.4 No interest will be payable for the period between deposit of the earnest money and refund of the same within the specified time as mentioned in regulation 4.4.3.
- 4.4.5 If the applicant opts to keep the earnest money with the licensee, the licensee shall undertake the techno-economic study as referred to in regulation 4.4.1. On completion of such study, the licensee will communicate to the applicant, in writing, about the decision of the licensee whether such substation will be erected and commissioned by the licensee or not. Such communication shall be made within a period as specified below :
 - A. For LV and MV supply — 45 days from the date of receiving the option by the licensee as referred to in regulation 4.4.2
 - B. For HV supply — 60 days from the date of receiving the option by the licensee as referred to in regulation 4.4.2
 - C. For EHV supply — 90 days from the date of receiving the option by the licensee as referred to in regulation 4.4.2

4.4.6 Consequent upon the decision taken by the licensee as mentioned in regulation 4.4.5, the following provisions shall apply :

- a) If the applicant opts to keep the earnest money as referred to in regulation 4.4.5 with the licensee, the same will bear an interest as applicable to security deposit, as specified by the Commission under section 47 of the Act, from the date of receipt of the option of the intending consumer by the licensee.
- b) If after consideration of the detailed report of the techno-economic feasibility study, the licensee decides that it will not be feasible to erect / commission the new substation, the licensee shall communicate such decision within the period as specified in regulation 4.4.5, in writing, to the applicant and refund the earnest money along with interest as specified in regulation 4.4.6(a).
- c) If, on the other hand, after consideration of the detailed report of the techno-economic feasibility study, the licensee decides to erect and commission the new substation, the proposal of new substation shall be prepared by the licensee and sent to the Commission for investment approval within 4 weeks from the date of such decision where the proposed capital expenditure exceeds a sum of Rs.100 crore. Where such proposed capital expenditure is within Rs. 100 crore and, therefore, approval of the Commission is not required, the licensee shall prepare the estimate for effecting service connection from the proposed substation based on the inspection report and applied load followed by issue of the quotation within 4 weeks from the date of communication of the licensee's decision. However, where such approval of the Commission is required, then, on getting such approval or in absence of such approval, after completion of 30 days from the date of submission of application to the Commission for such approval, whichever is earlier, the licensee shall prepare the quotation in line with regulation 3.1.1 of these regulations and issue the same within the next 4 weeks.
- d) Where the Commission does not agree to give investment approval for such capital expenditure, then the licensee shall communicate such decision to the intending consumer within ten days from the date of receipt of such communication from the Commission along with refund of the earnest money and accrued interest thereon informing also the intending consumer that the application henceforth will be treated as cancelled.
- e) Where the Commission asks for modification of the capital expenditure plan within 30 days from the date of submission of the initial capital expenditure plan to the Commission, then after approval of the modified plan or 30 days from the date of submission of such modified plan to the Commission, whichever is earlier, the licensee shall prepare the estimate and issue the quotation within the next 4 weeks in line with regulation 3.1.1 of these regulations.

4.4.7 On receiving the quotation as specified in regulation 4.4.6 (c) and 4.4.6(e) the intending consumer shall make the payments/deposit(s) and apply for supply of electricity to his premises in terms of regulation 3.1.3. The licensee shall supply electricity to the applicant within a period as specified below from the date of receiving the application form given in Annexure – B, completed in every respect, from the intending consumer and after completion of all formalities by the intending consumer,—

- (i) For erection and commissioning of a distribution substation – 90 days from the date of taking over possession of the land or the sanction of the concerned Local Body or clearance of right of way, whichever is later.
- (ii) For erection and commissioning of a 33 / 11 KV or 33/6 KV sub-station – 300 days from the date of taking over possession of the land by the licensee or clearance of right of way, whichever is later.

- (iii) For erection and commissioning of a 132 / 33 KV substation – 540 days from the date of taking over possession of the land by the licensee or clearance of right of way, whichever is later:

Provided that if the substation is a part of any investment plan which has already received approval of the Commission, the licensee shall complete the work of erection and commissioning of the substation within the time period mentioned in the aforesaid investment plan.

- 4.4.8 If the quotation amount as mentioned in regulation 4.4.7 is not deposited within the specified period as specified in regulation 3.1.3, then the application will be treated as cancelled and the earnest money will be forfeited. In such case, it will be the prerogative of the licensee whether it will continue with the process of erection and commissioning of the new substation depending on the availability of applications from other intending consumers to the licensee. If the licensee drops the proposal of setting up the new substation, then on any other application from any intending consumer in subsequent period the whole process will start afresh and the above techno-economic study related to the proposal so dropped will not be a binding factor for the licensee to decide whether a fresh techno-economic study is required or not.
- 4.4.9 In case of refund of earnest money and the accrued interest thereon, if any, in pursuance of regulation 4.4.3 or 4.4.6(b) or 4.4.6(d), as the case may be, the licensee shall bear the cost of refund (i.e. money order commission, charges to the bank, etc.). In case of delay in the said refund beyond the specified time as mentioned in regulation 4.4.3 or 4.4.6(b) or 4.4.6(d), as the case may be, the licensee shall bear interest for the delayed period at a rate as specified by the Commission for security deposit under section 47 of the Act. In such case interest payable shall not be passed through tariff.

5.0 Time Limits for Extension of Load for Existing Consumers:

- 5.1 Time Limits where extension of load can be accommodated from existing service and/or with augmentation of overhead line without additional pole and/or augmentation of underground cable within 100 meter.
- A. Within 30 days from the date of receipt of the application in the form given in Annexure – B, completed in every respect, for a consumer having overhead line.
- B. Within 45 days from the date of receipt of application in the form given in Annexure – B, completed in every respect, where augmentation of underground cable is required
- 5.2 Time Limits where for extension of load augmentation of distributing main and/or extension of underground cable above 100 meter or extension of overhead line with additional pole(s) will be required.

Where augmentation of distributing main and/or extension of feeder/line/cable is required for extension of load of an applicant, the licensee shall extend the load of the applicant within the time limits specified below from the date of receipt of the application in the form given in Annexure – B, completed in every respect:

- A. For LV and MV consumers where extension of overhead line or feeder or underground cable is not required– within 45 days;
- B. For LV and MV consumers where extension of overhead line is required without any additional pole – within 60 days;
- C. For LV and MV consumers where extension of overhead line with additional pole(s) is/are required – within 90 days;

D. For LV and MV consumers where extension of underground cable is required – within 90 days;

E. For HV and EHV consumers – within 180 days.

- 5.3 Time Limits where for extension of load commissioning of a new transformer and/or bay along with accessories in an existing substation will be required.

Where a new transformer and/or bay with accessories will need to be commissioned in any existing substation in order to accommodate the extension of load of an applicant, the licensee shall extend the load of the applicant within the periods specified below from the date of receipt of the application in the form given in Annexure-B, completed in every respect.

- A. For a Distribution substation – within 90 days;
- B. For a 33/11 KV or 33/6 KV substation – within 150 days;
- C. For a 132/33 KV substation – within 270 days:

- 5.4 Procedure and Time Limits where for extension of load erection and commissioning of a new substation will be required.

The provisions of regulation 4.4 shall apply *mutatis mutandis* where for extension of load, erection and commissioning of a new substation is required.

6.0 Time Limits for Alteration of Service:

Where alteration of service is required to be undertaken by the licensee as per request of an existing consumer, the licensee shall complete such work within the time limits specified below from the date of receipt of the application in the form given in Annexure – B, completed in every respect.

- A. For alteration of service covering meter/ meter board/ service line within the premises of the consumer– within 30 days;
- B. For alteration of service other than those mentioned in A above – within 90 days.

7.0 Connection through transfer of service / meter in case of change of ownership or occupancy of any premises or purpose of supply:

- 7.1 In case of change of ownership or occupancy or purpose of supply of any premises where metered service is still continuing in the name of any previous owner or occupier (hereinafter referred to as transferor), the present owner or occupier of that premises (hereinafter referred to as the transferee) may apply to the licensee for disconnection of the existing service in plain paper or transfer of the existing service / meter in his name in Annexure A1.

- 7.2 While applying in Annexure – A1 for transfer of the existing service / meter in his name the intending consumer shall also submit any one of the following supporting documents along with the application.

- a) No objection certificate from the existing consumer (hereinafter referred to as the transferor) as per format given in Annexure – A2 mentioning the continuance of security deposit or refund of it to the person who deposited it;
- b) Succession certificate or undertaking, through affidavit, as legal heir of the original consumer and entitled to get such service / meter as successor in case of demise of the original consumer. In case the number of legal heirs is more than one, the no objection certificate(s) by other legal heir(s), through affidavit, in favour of the applicant legal heir as per format given in Annexure – A3;
- c) Sale deed or lease deed or tenancy agreement establishing the applicant as owner / occupier of the concerned premises for which transfer of service/meter is applied for.

- 7.3 In the single application in Annexure – A1, the applicant can opt for connection through transfer of service / meter in case of change of ownership or occupancy of the premises as well as change in purpose of supply along with the reduction of load, if requested for. If such application is meant either for transfer of service / meter or change in purpose of supply then also in both the cases reductions of load is permissible.
- 7.4 In case of change of purpose of supply for the existing consumer or for the consumer in whose name transfer of service/ meter is proposed, the applicant shall, along with the application, furnish the reasons for change of purpose of supply through an affidavit:
- Provided that such change of purpose of supply can be effected by the licensee only in such cases where no additional cost under the regulations made under section 46 of the Act is recoverable for change of purpose of supply.
- 7.5 On receiving the application in Annexure – A1 under regulation 7.1 completed in all respect, the licensee shall send all the documents for compliance with, to the applicant within 7 working days from the date of receipt of application in Annexure – A1 completed in all respect. Such formalities may include all or any of the following such as deposit of security amount, agreement to be executed for signing and payment of outstanding dues except the last electricity bill in the name of the transferor which is to be paid by the transferee after change of name. The applicant shall either submit the documents of formalities and clear outstanding dues within 10 working days from the date of receipt of the above documents or withdraw the application in plain paper. Subsequently the applicant may ask for disconnection as per regulation 7.1 followed by application for new connection after disconnection is effected.
- 7.6 The licensee shall change the name and/or purpose of supply if applied for, along with load reduction where asked for within the next billing cycle without discontinuing the supply subject to fulfillment of the formalities. However if the gap between the date of completion of all the formalities and starting of next billing cycle is less than 7 working days then such change will be effected from the second next billing cycle.
- 7.7 Such consumer will be treated as new consumer for the purpose of supply, as applied for, from the effective date and time of change of name of the service / meter.
- 7.8 For connection under regulation 7.0, through transfer of service / meter in the name of the applicant in case of change of ownership / occupancy of any premises and/ or purpose of supply, no load extension will be allowed. Only after effecting the transfer of name, extension of load can take place on the basis of fresh application for such purpose in accordance with these regulations. In case of applications through Annexure – A1 the tariff scheme will be the Applicable Tariff scheme as per Annexure – C2 of the Tariff Regulations subject to the other conditions as laid in the said Annexure of the Tariff Regulations.
- 7.9 With the application for connection through transfer of name under regulation 7.2, no earnest money is required to be deposited. However, applicable security deposit may be asked for by the licensee for this connection as mentioned in regulation 7.5 of these regulations.
- 7.10 The transferee shall bear all the liabilities of the transferor as a consumer under the Act or Rules or Regulations made thereunder.
- 7.11 In case of change of ownership or occupancy of any premises, the present owner or occupier who has asked for disconnection of the existing service as mentioned in regulation no. 7.1 can subsequently

ask for new connection in accordance with regulation 3.0 of these regulations after disconnection has taken place as per his request. The licensee is to effect disconnection immediately within the period specified in the Supply Code from the date of receipt of the request for the disconnection.

- 7.12 The time limit specified under regulation 7.0 shall over-ride the time limits for reduction of load as specified under regulation 12.3 of these regulations, where applicable.

8.0 Complaint Management Mechanism:

- 8.1 Continuous endeavour has to be made by every licensee to improve the quality of services. Management of "Electricity Failure" calls of consumers of all categories need to be modernized keeping in view the consumer expectations, development of technology and economy in implementability. "Management of Electricity Failure" calls is to be designed keeping in view (1) the consumer density (2) extent of underground and overhead supply (3) traffic congestion etc. However, the management mechanism to attend to the consumers' calls should be continuously improved and modernized by the licensee taking advantage of technological advancement, human resource development and through better communication and Management Information System (MIS). Accordingly, the following complaint management mechanism has been specified.
- 8.2 The area of supply covered by the licensee shall be divided into several maintenance zones or districts. In each zone, a Zonal Reporting Centre (ZRC) shall be established which shall be provided with external telephone (preferably more than one connection), internal communication through modern communication arrangements like closed user group mobile phones, VHF wireless sets, licensees own dedicated communication network etc. Such centre shall operate round the clock. A ZRC shall be manned by adequate number of working personnel to respond to telephone calls. Under each ZRC the licensee should also set up a chain of Complaint Registration Centre (CRC) to be operated by the licensee itself or self-help groups or franchisees or cooperative societies etc., wherever required, covering its area of supply. The CRC shall be located strategically keeping in view the consumers' convenience and administrative set up of the licensee. The CRC shall be operated in two shifts (from 6.00 A.M to 10.00 P.M). In addition at least one Mobile Consumer Service Unit (MCSU) shall be provided in the area covered by CRC. The Mobile Consumer Service Unit (MCSU) shall be a van with adequate consumable items and tools with suitable number of skilled and unskilled maintenance personnel. MCSU will operate in two shifts (from 6.00 AM to 10.00 PM). For night (10.00 PM to 6.00 AM) at least one MCSU is to be provided in urban area covering multiple CRCs depending on the volume of complaints received at the night under the area concerned.
- 8.3 If the licensees set up a single large Centralized Call Centre (CCC) equipped with modern communication and IT infrastructure to provide round the clock service then in such case ZRC may not be required and the role of ZRC will be covered by CCC. Such CCC shall be provided with modern communication equipment like interactive voice response, logging in through web interface and by simple telephone call to register a complaint.
- 8.4 The CRC shall have communication facilities with the MCSU and the ZRC/ CCC. Each CRC shall be provided with adequate man power to handle the lodging of complaints. A ZRC/ CCC will control and coordinate the activities of the MCSU.
- 8.5 Consumer calls shall be received at the CRC over telephone or through call slips. The consumers will be provided with a docket number and time against each complaint received either through telephone or through call slips. The consumer's name, address and telephone number with location / pole number shall be noted while receiving the complaint. A copy of the call slip shall be handed over to the

consumer while the other copy shall be retained. On receiving such call the CRC shall intimate the MCSU and/or ZRC/CCC according to the system adopted by the licensee. After restoration, the consumer's signature along with the time of restoration shall be taken in the call slip where such restoration had taken place against individual call and MCSU shall report the action taken on restoration to ZRC/CCC. Where restoration of such individual call is covered through restoration of group failure then consumers' signatures are not required but subject to intimation over telephone or web interface if available, through ZRC/CCC as specified in regulation 8.7.

- 8.6 Consumer calls can also be directly received by ZRC / CCC as the case may be over telephone or web interface. Against each complaint, the Caller ID will be generated and a docket number with time of registration of complaint will be allotted to the caller over telephone or through web as the case may be. After receipt of the complaint the ZRC/CCC in turn will inform the Mobile Consumer Service Unit (MCSU) through appropriate communication system about the incident with a direction to attend the fault.
- 8.7 In case of group failure, the MCSU will be diverted on priority basis to attend the break down for which the group failure has occurred. This diversion will take place by superseding earlier allotted individual calls. After restoration of supply to the affected group of consumers, the time of restoration shall be communicated to the CRC and the ZRC/CCC by the MCSU who, in turn, will confirm the restoration with time to the relevant caller where such consumer has not been intimated of restoration at the site. Further instruction from ZRC/CCC about individual consumers' call shall be responded to by the MCSU if it is confirmed that even after group restoration some individual consumer's supply has not been restored.
- 8.8 The caller should also be able to know the status of his complaint till the supply is restored but preferably not before 2 hours from the time of lodging the complaint or the expected time is intimated to caller by the CRC or ZRC/CCC whichever is later.
- 8.9 The licensee shall print the address and phone number of the concerned CRC and ZRC / CCC in the electricity bill of each consumer. In addition such information should be available in the website of the licensee and also shall widely be advertised by the licensee in a suitable manner.

9.0 Interruptions of Supply

- 9.1 For any unplanned interruption except those arising out of unforeseen contingencies like natural calamities, grid failure, automatic under frequency tripping and other force majeure events beyond the control of any licensee, the licensee shall, on receipt of a complaint from a consumer, restore electric supply to the consumer as per the following time frame to be reckoned from the time and date of receipt of the complaint.
 - (a) Failure of licensee's fuse, —
 - (i) In Urban areas – within 3 hours;
 - (ii) In Rural areas – within 8 hours in Monsoon (June - September) and within 6 hours during other period of the year (October-May);
 - (b) Snapping of wires (L.T), —
 - (i) In Urban areas – within 4 hours;
 - (ii) In Rural areas – within 16 hours in Monsoon (June - September) and within 10 hours during other period of the year (October-May).

(c) Falling of trees on overhead line without breaking / uprooting of pole(s) (LT and HT), —

(i) In Urban areas – within 8 hours;

(ii) In Rural areas – within 24 hours.

(d) Breakdown due to short circuit of LT line/ cable, —

(i) For underground cable

In Urban areas – within 6 hours;

(ii) For overhead line

In Urban areas – within 3 hours;

In Rural areas – within 4 hours.

(e) Breakdown of 11 KV line (overhead), —

(i) Where no pole replacement is required, —

In Urban areas – within 6 hours;

In Rural areas – within 18 hours.

(ii) Where pole replacement is required, —

In Urban areas – 12 hours;

In Rural areas – 24 hours.

(f) H.T. underground cable faults, —

(i) Within 4 hours where ring main supply exists;

(ii) Within 24 hours where there is no ring main system.

(g) Failure of distribution transformer, —

(i) In Urban areas – within 12 hours;

(ii) In Rural areas – within 48 hours.

Provided that, in case of repeated failure of transformers or frequent theft of transformers or transformer oil the reasons for such incidence shall be studied by the licensee for taking appropriate corrective measures and, where it is beyond the control of the licensee, the licensee shall restore the service through a transformer only after ensuring appropriate measures against the recurrence of such incidents.

(h) Breakdown of L T line for any other reason not covered above, —

(i) In Urban areas – within 6 hours;

(ii) In Rural areas – within 24 hours.

(i) Failure of Service line, —

Urban areas		Rural areas	
Overhead	Underground	Overhead	Underground
within 4 hours	within 12 hours	within 18 hours	within 24 hours

- 9.2 During restoration process under regulation 9.1 all efforts are to be made to temporarily restore the supply of maximum numbers of affected consumers by making electricity available through alternative routes / from alternative transformers etc.:

Provided that if the breakdown under regulation 9.1 has occurred due to theft, the aforesaid time periods will be counted subsequent to lodging of FIR and inspection by police.

- 9.3 Incase coordination with other government departments like PWD, Forest Department etc. is essential, efforts should be made to obtain such clearance expeditiously and the restoration should be effected within 12 hours in each case in addition to time limit as per regulation 9.1, where applicable.
- 9.4 Notwithstanding anything to the contrary contained anywhere in these regulations, in the case of rural areas, if the complaint of interruption of supply is received after 8 pm on any day, the work for restoration of supply will be taken up by 6 am on the next day and will be completed within the time period as specified in regulation 9.1.
- 9.5 Notwithstanding anything to the contrary contained anywhere in these regulations, incase the permission for crossing railway, State & National Highway, P&T etc. is required from respective authority for restoration of the supply then the specified restoration time limit under regulation 9.1 shall be counted from the time of receipt of such permission from the concerned authority.
- 9.6 When there is a planned interruption of supply lasting more than 6 hours at a stretch for planned maintenance but not including emergency repair, every licensee shall notify the consumers at least 3 days before the supply is cut off through announcements in radio/T.V., website, advertisements in leading daily newspapers, loudspeaker etc. and restore the supply within the time to be announced. Special care is to be taken for notifying the planned interruption if water supply, hospitals or railway traction is likely to be affected by the interruption. If the planned interruption is for more than 12 hours at a stretch, temporary arrangement may be made to provide power after 12 hours. Incase of planned interruption due to load management, a suitable general notice is to be issued through media announcements unless the requirement is of short duration and of emergent nature arising out of contingency of sudden loss of generation or sudden reduction of supply from source of purchase. In such cases of interruptions, adequate weightage of high Technical & Non-Technical losses shall be applied in selecting the feeder, distribution transformer etc. Such interruptions shall not be taken into consideration for evaluating the reliability of supply.
- 9.7 i) Every licensee shall arrange for display of actual unplanned / planned interruption and load-shedding details in the licensee's website on weekly basis giving the interruption reference number, feeder name & number or Consumer Reference Zone, outage time, duration, affected area, concerned district, etc. Phase outage of a feeder shall also be reflected. Such interruption shall not include those interruptions due to any fault in the service line from distribution main to the consumer's premises or within the consumer's premises. The interruption reference number shall be a unique number and related to a particular single interruption of a particular feeder so that the detail of such information can be identified by the licensee whenever any reference is made to such interruption reference number. The licensee shall thus arrange its Information Technology enabled documentation system properly for such purpose. The scheme of interruption number shall have at least following prefix identities, namely short name of the licensee, feeder capacity, date, month, year and district and other element as required for the purpose.
- ii) Above mentioned information shall be available in the website of the licensee for at least 15 days from the date of occurrence of such unplanned/ planned interruption and load-shedding.

- iii) If any consumer connected on the said feeder has any objection on such information under display inclusive of improper information or suppression of information, the said consumer may register its objection with the Commission referring the interruption number.
- iv) On receiving the objection, if required, the Commission may cause an enquiry and take an appropriate decision on the accuracy of the information given by the licensee.
- v) The said information along with estimated affected load in MW and energy losses in unit for each such interruption / load-shedding of each feeder on the basis of commensurable past record of concerned feeder shall also be submitted in separate sheet in MS Office 'Excel' format to the Commission on weekly basis.
- vi) Based on such data of interruption as referred to in clauses (i), (v) and the ascertained data as in (iv), the Commission shall make reliability calculation and check for compliance of different requirements under the Tariff Regulations.

9.8 The provisions of the regulation 9.7 shall be introduced by each licensee in a phased manner and shall be made fully operational from 1.4.2013.

10.0 Voltage Complaints

10.1 Under/ Over Voltage

If there is a complaint from a consumer regarding persistent under or over voltage, each licensee shall take corrective measures within 15 days, if the problem is local. If such correction requires augmentation of the distribution system and/or re-routing of the distribution line etc. such time period will be 6 months from the date of complaint:

Provided that where the voltage complaint is caused by grid voltage, the licensee shall take up the matter with the appropriate authority forthwith.

10.2 Voltage Fluctuations

Complaints about voltage fluctuations beyond the specified limits as specified in the Safety Regulation defined under the State Grid Code made by the Commission shall be attended to by each licensee within the time periods specified below:

- i) In Urban areas – within 4 days
- ii) In Rural areas – within 8 days

11.0 Meter and Metering Equipment Complaints

On receipt of a written complaint from a consumer or on detection by any licensee about burnt meter or faulty meter or accidental breakage of seals, where no tampering is suspected, the licensee shall take action as specified below, subject to compliance of all requisite formalities by the consumer.

11.1 Replacement of burnt out and other faulty meters/metering system where supply is not affected.

In Urban areas – The meter shall be inspected within 3 days from the date of receipt of the complaint. In case of burnt out meter it shall be replaced within 3 working days from the date of inspection. In case the meter/metering system is found otherwise faulty the meter/metering system shall be tested and the same shall be replaced/rectified within 10 working days from the date of inspection.

In Rural areas – The meter shall be inspected within 7 days from the date of receipt of the complaint. In case of burnt out meter it shall be replaced within 7 working days from the date of inspection. In case the meter/metering system is found otherwise faulty the meter/metering system shall be tested and the same shall be replaced/rectified within 20 working days from the date of inspection.

For detection of faulty meters the licensee shall be guided by the limits of accuracy specified in the Central Electricity Authority (Installation and Operation of Meters) Regulations, 2006 read with the relevant Standards of Bureau of Indian Standards (BIS).

11.2 Replacement of burnt out and other faulty meters/metering system where supply is affected.

In Urban areas – within 24 hours from the time of receipt of the complaint or detection by the licensee.

In Rural areas – within 48 hours from the date of receipt of the complaint or detection by the licensee.

11.3 Accidental breakage of seals, where no tampering is suspected.

11.3.1 Necessary sealing, if replacement of meter is not required – within 24 hours from the time of receipt of the complaint or detection by the licensee.

11.3.2 Replacement of meter, if required – within 7 days from the date of receipt of the complaint or detection by the licensee.

11.4 The periods for replacement of meters mentioned in regulations 11.1 to 11.3 shall be applicable in all cases other than the cases where meters have been found to have been tampered with or the cause of burning / defect of the meter is attributable to the consumer. Where the meter is found to have been tampered with or the cause of burning/ defect of the meter is attributable to the consumer, the meter will be replaced only after deposit of its cost and completion of all other statutory formalities as required against such cases and specified time limits in regulations 11.1 to 11.3 shall be counted from the date of such deposit.

11.5 The calibration of meters of the consumers shall be done periodically by the licensee as may be directed by the Commission.

11.6 The licensee shall install suitable cut out or any suitable device for each meter to ensure that the meters are not grossly overloaded. The cut out shall be adequately enclosed in a suitable receptacle and sealed.

12.0 Modifications to the Existing Connection:

On receipt of a written request from a consumer either in the specified form completed in every respect, where applicable, or in plain paper where no form has been specified, each licensee shall take action within the time as specified below :-

12.1 Removal of consumer's installation on request for discontinuation of consumership – within 7 working days.

12.2 Conversion from one tariff scheme to another without changing the purpose of supply – Within next billing cycle from the date of completion of all formalities arising out of any written request from the consumer.

Provided that if the gap between the date of completion of all the formalities and starting date of next billing cycle is less than 7 working days then such conversion will be effected from the second next billing cycle.

12.3 Reduction of load – On receiving the application for reduction of load such reduction will be effected within the next billing cycle from the date of receipt of the request from the consumer and the effect of it on tariff will be from the next billing cycle:

Provided that if the gap between the date of completion of all the formalities and starting date of next billing cycle is less than 7 working days, then such conversion will be effected from the second next billing cycle.

Provided further that reduction of load or downward revision of contract demand shall be effected on the basis of application not before one year from the date of effect of service connection.

Provided also that any subsequent request for reduction of load / downward revision of contract demand shall be made effective not before one year from the date of previous reduction.

13.0 Miscellaneous provisions.

- 13.1 The time limits specified in these regulations for various purposes shall be in addition to any excess time taken by the State Transmission Utility or any other licensee or transmission licensee, if involved, for providing the facilities.
- 13.2 In all cases where the time schedules specified in these regulations cannot be maintained due to unforeseen contingencies which are beyond the control of any licensee, the licensee shall seek specific approval from the Commission for extension of time, as may be called for, in each case, on furnishing all relevant facts and figures explaining the delay. However, licensee shall keep the intending consumer/ consumers informed of such delay.
- 13.3 There shall be no new connection for supply of electricity with Direct Current (DC). All new connections for supply of electricity shall be with Alternating Current (AC) only. Moreover, an existing consumer having DC supply shall have to changeover from its existing DC supply to AC supply prior to submitting a requisition to the licensee for extension of load/ alteration of service.
- 13.4 Notwithstanding anything contained elsewhere in these regulations, when there is a change in ownership or occupancy of a premises supplied with DC supply, then the occupier/ owner of that premises shall not be allowed to apply for change in purpose of supply/ transfer of service in case of change of ownership/ occupancy under regulation 7.0 of these regulations. In such case the owner/ occupier shall change the supply from DC to AC only.
- 13.5 The time limits laid down in these regulations for various purposes shall stand extended in the case of consumer, having supply of electricity with DC, by such time which may be necessary for procuring different parts / spares etc. which may be urgently required but are not sometimes readily available to enable maintenance of the relevant standards of performance related to consumers having supply of electricity with DC.
- 13.6 Any licensee, at its discretion, may use any form in addition to other specified forms, as required for the purpose of these regulations, for collection of data.
- 13.7 Any licensee may, at its own discretion, incorporate serial number in the forms given at Annexure – A, Annexure – A1, Annexure – A2, Annexure – A3, Annexure – B and Form – 1 and also any special internal number in the forms given in Annexure – A, Annexure – A1, Annexure – A2, Annexure – A3, Annexure – B and Form – 1 if it strengthens the internal linkage and control procedure of the licensee. The licensee may also, at its discretion, introduce a bar-code or any other additional way of unique identification system in any form under these regulations, if it helps the licensee to effect transactions speedily and facilitate accounting control.
- 13.8 All time targets for giving new supply / extension of load etc. as mentioned above shall be counted from the date on which all charges have been paid and all formalities completed including requisite compliances.
- 13.9 For getting new connection for supply of electricity from a licensee an intending consumer shall be required to pay all outstanding dues to the licensee in respect of any other service connection held in his / her name located in the area of supply of the same licensee and he / she shall also be responsible

for payment of outstanding charges calculated in a prorated manner, if it is established that he / she has had a nexus with the previous consumer(s) including the purchaser/ the new lessee / the new tenant of a property or a portion thereof in respect of which there are outstanding charges and / or who has/ had benefited from non-payment of the aforesaid outstanding dues by the previous consumer(s) to the licensee.

- 13.10 In addition to the agreement to be executed in the form given in Annexure – B, which is an application for supply of electricity-cum-agreement, the licensee may enter into separate and more detailed agreements for EHT/HT consumers in line with provisions of the Act, Rules, Regulations and Codes made by the Commission under the Act.
- 13.11 The licensee shall clearly inform the applicant, in writing, of the compliances which need to be met and the various documents in regard to Test Form, Way Leave Form, Pollution Clearance and other statutory clearances which are required to be submitted at various stages before the supply can be provided. A printed list of such compliances shall be attached by the licensee with the application form given in Annexure – A, Annexure – A1 and Annexure – B. At the time of filing/ examining the application for new connection the licensee shall ensure that the intending consumer/ consumers are being properly assisted in filing their application as far as possible.
- 13.12 Forms given in Annexure – A, Annexure – A1 Annexure – A2, Annexure – A3, Annexure – B, Annexure – C and Form – 1 can be made computer compliant by each licensee without changing the content of the requisite forms. Such forms shall also be made available in the website of the licensee so that applicants can download it for use. Such pre-printed format shall be made available by the licensee to the applicant on demand and, in that case only, the licensee can charge a token price of Rs. 5/- for each form.
- 13.13 For quick disposal of applications for new connections or load enhancement or for affordability of new connection to a consumer or for better complaint lodging mechanism, a licensee may, at its discretion, develop a new procedure for any class/ classes of consumers with the approval of the Commission. However, if any provision of such procedure is inconsistent with any provision of any Regulation and to the disadvantage to the consumers, then the relevant provision of the Regulation shall prevail. The compensation for failure to meet any of the standards of performance by the licensee under the said procedure shall be as per these regulations.
- 13.14 Every licensee shall set up at least one office in each subdivision within its area of supply, for receiving applications from the intending/existing consumers in the form given in Annexure – A, Annexure – A1, Annexure – A2, Annexure – A3, Annexure – B and Form – 1 as specified in these regulations. The licensee shall also earmark any of its offices within its area of supply for receiving applications from the intending/ existing consumer in the form given in Annexure – A, Annexure – A1, Annexure – A2, Annexure A3, Annexure – B and Form – 1 as specified in these regulations in respect of the areas where there is no distribution infrastructure of the licensee.
- 13.15 Every licensee shall in the month of June every year publish in three daily newspapers the names of its offices where any person can submit his application for new connection for supply of electricity. This publication shall clearly mention the area to be covered by each such office. Out of three newspapers, at least one shall be in Bengali and another shall be in English. The matter for publication in the Bengali newspaper shall be in Bengali language and the matter for publication in the English newspaper shall be in English language.

- 13.16 The time limits as specified in regulations 4.0, 5.0 and 9.0 shall stand extended by the length of time that may be taken in obtaining permission from the concerned authorities including the Government, local bodies and Railways for opening up streets, railways etc. for the purpose of effecting repairs, unless the Rules made under sub-section (2) of section 67 of the Act empower the licensee in this behalf appropriately.
- 13.17 Notwithstanding anything contained elsewhere in these regulations, the licensee shall not, be held responsible for the delay, if any, in providing the supply or service as specified under regulation 3.0 to regulation 12.0 of these regulations, if the same is on account of problems relating to right of way, acquisition of land, order of court of law, clearance of any statutory authorities, or delay in meeting intending consumer's / consumer's obligation over which licensee has no reasonable control.
- 13.18 Every licensee shall notify the cost of meter from time to time on the basis of purchase cost. Meter cost claimed under quotation as referred to in regulations 3.1.2 of these regulations shall not be allowed to be revised subsequently on ground of changes in prices subsequently.

14.0 Enforcement Mechanism:

- 14.1 Every licensee shall register every complaint regarding failure to maintain the standards of performance specified in these regulations and preferred by the consumers / intending consumers affected for the said failure. The licensee shall also communicate a complaint number with date to the consumer/ intending consumer who prefers such complaint as soon as possible, but not later than 7 working days from the date of receipt of the complaint. Moreover, the licensee shall inform the consumers/ intending consumer immediately regarding the action taken by the licensee to mitigate the problem/ grievance of the consumers/ intending consumer. For this purpose the licensees shall maintain all necessary records consisting of all essential information regarding the consumer/ intending consumer concerned, the nature of his complaint and the necessary details of the latter.
- 14.2 Any consumer/ intending consumer who is affected by any failure of a licensee to meet the standards of performance, specified in these regulations, may submit a complaint to the Grievance Redressal Officer concerned of the licensee in the matter of the said failure of performance excluding the cases under sections 126, 127, 135, 136, 137, 138 and 139 of the Act. A consumer / an intending consumer may also submit an application to the Grievance Redressal Officer concerned of the licensee claiming compensation for such failure to perform and also for delay in reconnection with reference to the time limits specified in the Supply Code or order of any competent court of law or competent authority or for wrongful disconnection including disconnection under section 135 of the Act if it was wrongful. The Grievance Redressal Officer after receiving such complaint shall dispose of the same as per Regulations made under sub-sections (5) and (7) of section 42 of the Act.
- 14.3 If the affected consumer/ intending consumer is not satisfied with the order of the Grievance Redressal Officer or does not receive any order from that Grievance Redressal Officer whom he has approached within the time specified in Regulations made under sub-sections (5) and (7) of section 42 of the Act, he may submit a written representation to the Ombudsman for settlement / redressal of his grievance and / or payment of compensation which the licensee is liable to pay to the affected consumer/ intending consumer for failure to meet the standards of performance in terms of these regulations. The working procedure for submitting such representation will be as per the regulations made under sub-sections (5) and (7) of section 42 of the Act.

- 14.4 The Ombudsman shall accept such representation and after giving reasonable opportunity to both parties of being heard pass reasoned and speaking settlement order in the matter of the grievance of consumer or affected consumer/ intending consumer and / or payment of compensation which the licensee is to pay to the affected consumer/ intending consumer in terms of these regulations. The working procedure for disposal of such representation will be as per Regulations made under sub-sections (5) and (7) of section 42 of the Act.
- 14.5 The licensee shall pay the compensation in cash / cheque / demand draft in favour of the affected consumer/ intending consumer as per order of the Grievance Redressal Officer or the order of the Ombudsman, as the case may be, within a period of thirty days from the date of such order. When such payment is made as per order of the Ombudsman the licensee shall send a report of compliance to the Ombudsman within 15 days from the date of compliance. In case of possible delay in complying with the order of Ombudsman, the licensee shall seek permission of the Ombudsman before expiry of thirty days.
- 15.0 Determination of compensation to be paid to the person affected for failure to meet the Standards of Performance by the licensee:**

If a licensee fails to meet the standards as specified against various service areas laid down in these regulations, he shall be liable to pay in addition to any other penalty which the licensee is liable to pay in terms of the Act or other regulations a compensation to the affected person as specified below:

- (a) Failure to comply with the time period as specified in regulations 3.0, 4.0, 5.0, 6.0, 7.0 and 12.0 of these regulations the compensation will be at the rate of Rs.500/- for each additional day of delay or part thereof.
- (b) Failure to comply with any other standard of performance as specified in regulations 9.0, 10.0 and 11.0, in these regulations except for wrongful disconnection and delay in reconnection – at the rate of Rs.500/- for each additional day/ slab of time or part thereof, as the case may be, irrespective of whether the place is urban or rural.
- (c) Compensation for delay in reconnection:
 - i) If a licensee fails to supply electricity through reconnection within the time limit specified in the Supply Code, he shall be liable to pay compensation to the consumer at the rate of Rs.500/- for each additional day of delay or part thereof.
 - ii) Nothing contained in regulation 15.0 (c)(i) of these regulations shall apply to a licensee to provide reconnection if he is prevented from doing so due to cyclone, floods, storms or other occurrences which are beyond his control.
- (d) Compensation for wrongful disconnection:
 - i) Notwithstanding anything to the contrary contained in the Supply Code, where a wrongful disconnection, not authorized by the Act or Regulations, takes place, the licensee shall be liable to pay to the consumer concerned compensation within 15 days from the date of order of the concerned Grievance Redressal Officer of the licensee/Ombudsman as specified below:

For HT industrial and HT commercial categories of consumers	Rs. 5,000/- per instance plus the amount paid by the consumer to the licensee in getting reconnection plus Rs. 500/- per day or part thereof during which period the supply remained wrongfully disconnected
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For LT industrial and LT commercial categories of consumers	Rs. 3,000/- per instance plus the amount paid by the consumer to the licensee in getting reconnection plus Rs. 500/- per day or part thereof during which period the supply remained wrongfully disconnected
For all other categories of consumers	Rs. 1,000/- per instance plus the amount paid by the consumer to the licensee in getting reconnection plus Rs. 500/- per day or part thereof during which period the supply remained wrongfully disconnected

- (ii) Any delay in providing such payment as mentioned under (i) above will attract interest at a rate as specified by the Commission under section 47 of the Act for security deposit from the date mentioned in (i) above.
- (e) If there is any dispute about the time taken additionally beyond the maximum allowable time specified in the regulations made under section 50 of the Act, by any licensee in effecting reconnection, or the period during which the supply remained wrongfully disconnected, the same shall qualify to be treated as a grievance and be resolved by the concerned Grievance Redressal Officer against whose order an appeal shall lie with the Ombudsman.

16.0 Annual Report:

Every licensee shall submit to the Commission an annual report, in the format specified at Annexure – C for every financial year commencing on 1st April and ending on 31st March next, positively within three months from the date of closing of the financial year.

17.0 Power of the Commission to Modify the Regulation:

The Commission may, at any time, at its sole discretion vary, alter, modify, add or amend any provision of these regulations.

18.0 Removal of Difficulty:

If any difficulty arises in giving effect to any of the provisions of these regulations, the Commission may, for reasons to be recorded in writing, direct any licensee or consumer, by general or special order, for taking suitable action not inconsistent with the provisions of the Act, as may appear to be necessary, for removing the difficulty.

19.0 Repeal:

- 19.1 The West Bengal Electricity Regulatory Commission (Standards of Performance of Distribution Licensees Relating to Consumer Services) Regulations, 2005 issued under Notification No. 24/ WBERC dated 18th October 2005 and published in the Kolkata Gazette, Extraordinary on 19th October 2005 is hereby repealed.
- 19.2 Notwithstanding such repeal, anything done or any action already taken under the repealed regulations, shall in so far as it is not inconsistent with these regulations, be deemed to have been done or taken under the corresponding provisions of these regulations.

Form - 1**Way Leave Permission
(See regulation 3.2.1)**

To

..... (Name of the Licensee)

.....

..... (Address of the Licensee)

Sir,

I / We have no objection to allow the fixing and erection of the necessary apparatus on or within the premises at owned by me / us, for effecting service connection to the premises at owned / occupied by Sri/ Smt./ M/s. son / daughter / wife of

I / We have no objection if the service line passes over / along / across / under premises at owned by me / us for effecting service connection to the premises at owned / occupied by Sri / Smt./ M/s. son/daughter/wife of

Yours faithfully,

Signature

(Name in full)

Address

.....

.....

Date :

Annexure-A

Application form to be used by an intending consumer / a consumer requesting the licensee for an inspection of his premises and preparation of estimate of expenditure to be borne by the intending consumer / consumer for new connection/ extension of load/ alteration of service.

***Please delete the inapplicable portions**

[See regulation 3.1]

To:

(Name of Licensee)

(Address of Licensee)

Sir,

I / We hereby request for an inspection, of my / our premises address of which is given below, by your authorised representative, and preparation as also supply of an estimate by you to me / us, giving in requisite details of the expenditures to be borne by me / us in terms of the regulations made under section 46 of the Electricity Act, 2003, together with the deposit(s) to be made by me / us in terms of the applicable Regulations for the purpose of getting new connection for supply of electricity at my/ our premises at EHV/HV/MV/LV having an expected connected load of KW/HP for domestic / commercial/ industrial/(other purpose to be mentioned) purpose/ extension of load of the existing service at my / our premises having Consumer No. from KW/HP to KW/HP as estimated by my / our licensed electrical contractor / alteration of service, namely (indicate the nature of alteration of service) as indicated in the attached hand drawn sketch (attach hand drawn sketch if required) at my / our premises having Consumer No.

I / We am / are depositing herewith an earnest money of Rs. Please adjust the earnest money with the amount that will be determined to be recoverable from me / us as reasonable expenditure under the regulations made under section 46 of the Electricity Act, 2003 for providing new connection(s) / expenditure for extension of load / expenditure for alteration of service and requisite deposit(s) to be made by me / us under the applicable Regulations. After making such adjustments, if any amount still remains outstanding, the same may be adjusted with my / our electricity consumption bill(s) or refunded to me / us.

I / We hereby inform you that I / We am / are the owner(s) / occupier(s) of the premises and I / we enclose copy of documents establishing sufficient proof of my / our bonafide occupation of the premises (viz., Passport / Voter Identity Card / Rent Bill / Rent Control Challan / Telephone Bill / Municipal or any other Tax Bill / any other document issued by any Ministry or Department of Government showing his occupancy in the premises etc.) / ownership of the premises.

I / We hereby inform you that I/ we intend to take meter on rental basis or by purchasing the meter through depositing the cost of the meter.

I / We hereby further declare that there is no other service connection / line live or disconnected, given/ was given by you in my / our name(s) in the premises for which the new service connection is being applied for.

I / We hereby further declare that I/we have service connection in my / our name(s) in the premises at (address of the premises) where electricity is supplied by you and that there is no outstanding dues in respect of that service connection.

The full address of my / our premises, which will be inspected by you for the aforesaid purpose, Telephone No./ important land mark (if any) and nearest pole no. (if available) are given below.

Address:-

Important Land Mark:-

Telephone No.

Nearest Pole No. (if available)

Yours faithfully,

(Signature of the applicant(s) with date)

Full Name

(In Block letters)

Full Address:

(In Block letters)

Telephone No(s),
if any.

Witness (1)

Signature with date

Full Name

Address

Witness (2)

Signature with date

Full Name

Address

- Note:
- 1) Please strike out inapplicable items.
 - 2) The printed list of purpose of supply as approved by the Commission from time to time will be available from the licensee.
 - 3) Please mention and describe important landmarks in the vicinity, if any, to facilitate easy identification of the premises.
 - 4) Please attach, if possible, a small sketch (not to scale) indicating the location of the premises.
 - 5) Earnest money to be deposited along with the application for new connection:-
 - A. For LV and MV supply
 - (i) For industrial purpose - Rs.2000/-
 - (ii) For commercial purpose above contract demand in 10 KVA or above – Rs. 1000/-
 - (iii) For purposes other than (i) & (ii) above – Rs. 200/-
 - B. EHV & HV supply
 - (i) 11 KV – Rs. 5,000/-
 - (ii) 33KV – Rs. 20,000/-
 - (iii) 132 KV – Rs.1,00,000/-

Annexure – A1

**Application form to be used for transfer of service/meter in case of change of ownership or
occupancy of any premises or change in purpose of supply**

*(Please strike out inapplicable items)
(TO BE SUBMITTED IN DUPLICATE)

See regulation 7.1

To:

(Name of Licensee)

(Address of Licensee)

Sir,

1. I / We hereby apply for transfer of service/meter/change in purpose of supply in my / our favour at the premises having the following address:

2. This is an application for existing service with the connected load as follows for domestic/commercial/ industrial/(other purpose to be mentioned) purpose.

(A) FOR CHANGE OF OWNERSHIP OF EXISTING SERVICE:

(i) Consumer No.

(ii) Name of the existing consumer:

(iii) Name of new owner/occupier:

(iv) Present category of load (viz. Domestic / Commercial / Industrial etc.)

(v) Present sanctioned Load —

(a) Connected Load KW / HP _____

(b) Contract Demand (For HT & EHT) KVA _____

(c) Present Voltage _____

(vi) Proposed reduction in Load in KW / HP _____

(B) FOR CHANGE OF PURPOSE OF SUPPLY:

- (i) Consumer No.
- (ii) Name of the consumer.
- (iii) Present category of load (viz. Domestic / Commercial / Industrial etc.)
- (iv) Proposed category of load (viz. Domestic / Commercial / Industrial etc.)
- (v) Present sanctioned Load —
 - (a) Connected Load KW / HP _____
 - (b) Contract Demand (For HT & EHT) KVA _____
 - (c) Present Voltage _____
- 3. I / We hereby declare that I / we shall abide by all provisions of the Electricity Act, 2003 and the Rules / Regulations / Orders / Statutory Notifications made under the Electricity Act, 2003, as amended from time to time.
- 4. I / We have confirmed to furnish security deposit newly determined by you in terms of the regulations made under section 47 of the Electricity Act, 2003 along with the first electricity bill on effecting the service against this application.
- 5. I / We undertake to replenish any shortfall in security deposit if and when required and for the value of meter(s) and other apparatus installed / to be installed at my / our premises.
- 6. I / We also enclose copies of documents showing in principle clearance for establishment wherever applicable from the Pollution Control Board concerned.
- 7. I / We also enclose copy / copies of
 - (i)) Any other documents of which compliances
 - (ii)) are called for
 - (iii))
- 8. Please provide me / us with the service as requested.

Yours faithfully,

Enclosed: As stated.

(Signature of the applicant(s) with date)

Full Name _____

(In Block letters)

Full Address: _____

(In Block letters) _____

Telephone No(s), _____

if any.

Witness (1)

Signature with date _____

Full Name _____

Address _____

Witness (2)

Signature with date _____

Full Name _____

Address _____

For use of the licensee / supplier

(To be filled up by the licensee/supplier on receipt of the application-cum-agreement form submitted by the intending consumer and the duplicate is to be handed over to the latter)

Accepted for and on
Behalf of the licensee/supplier

(Signature with date of the accepting official under the stamp/office
seal of the licensee/supplier)

Address: _____

Annexure - A2

Format of no-objection certificate to be issued by the consumer of the existing service in favour of another person applying for transfer of name of service.

[See regulation 7.2(a)]

To:

(Name of Licensee)

(Address of Licensee)

Sir,

I, Shri/Smt the
consumer (Consumer No.) hereby request you to transfer the
service in favour of Shri/Smt.....
along with security deposit.

OR

I, Shri/Smt the
consumer (Consumer No.) hereby request you to transfer
the service in favour of Shri/Smt....., but my
security deposit may be refunded to me.

Yours faithfully,

(Signature of the original consumer with date)

Full Name _____
(In Block letters)

Full Address: _____
(In Block letters)

Telephone No.(s), if any _____

Consumer No. _____

Annexure – A3

Format of No-objection certificate to be issued by other legal heir(s) of a consumer, who has died, in favour of one legal heir who is applying for transfer of the service owned by the deceased consumer.

[See regulation 7.2(b)].

AFFIDAVIT

I, Shri/Smt
 son / daughter / wife of
 aged about years, by faith, by occupation
 residing at
 do hereby solemnly affirm and say as follows:

That I, the legal heir of Late Sri / Smt.
 the consumer (Consumer No.), have no objection to transfer the service
 (Consumer No.) in favour of

That the statements made above are true to my knowledge and belief.

Prepared in my office,

Advocate

The deponent is known to me.

Clerk to Sri

Advocate

Solemnly affirmed before me, on

This the _____ day of _____

Annexure – B

Application form to be used by an intending consumer/ a consumer requesting the licensee for new connection / extension of load/ alteration of service.

***(Please strike out inapplicable items)**
(TO BE SUBMITTED IN DUPLICATE)
[See regulation 3.1.2 and 3.1.3]

To:

 (Name of Licensee)

 (Address of Licensee)

Sir,

1. I / We hereby apply for supply of electricity in my / our favour at the premises having the following address:

2. This is an application for new service / extension of load under existing service/ alteration of service and the expected connected load (in KW/HP) will be as follows for domestic / commercial / industrial / (other purpose to be mentioned) purpose.

(A) FOR NEW CONNECTION:

(i) For LV & MV : Connected Load KW/HP

(ii) For HV & EHV

Voltage of Supply

Connected Load (KW/HP) Contract Demand (KVA)

(B) FOR EXTENSION OF LOAD UNDER EXISTING SERVICE:

- (i) Consumer No. _____
- (ii) Present sanctioned Load —
 - (a) Connected Load KW / HP _____
 - (b) Contract Demand (For HT & EHT) KVA _____
 - (c) Present Voltage _____
- (iii) Extended Load required (including present load) —
 - (a) Connected Load KW / HP _____
 - (b) Contract Demand (For HT & EHT) KVA _____
 - (c) Proposed Voltage _____

(C) FOR ALTERATION OF SERVICES:

- (i) Consumer No. _____
 - (ii) Present category of load (viz. Domestic / Commercial / Industrial etc.) _____
 - (iii) Shifting – Rough sketch to be attached _____
 - (iv) Alteration – Nature of alteration (viz. Category, Phase, Shifting and Others) _____
3. I / We hereby declare that I / we shall abide by all provisions of the Electricity Act, 2003 and the Rules / Regulations / Orders / Statutory Notifications made under the Act, as amended from time to time.
4. I / We have already paid / I/we hereby tender an amount of Rs. _____ (Rupees _____) only as the amount recoverable from me / us under the regulations made under section 46 of the Electricity Act, 2003 and as per the cost estimate prepared by you and sent to me / us from your end vide your letter no. _____ dated _____.
5. I / We agree that if there is any difference between the amount, I / we have paid as per provisions of the regulations made under section 46 of the Electricity Act, 2003, and the amount that is finally determined to be recoverable from me / us, the difference will be adjusted with my / our electricity bills in not more than 4 (four) consecutive instalments.
6. I / We have also tendered / I/we hereby tender an amount of Rs. _____ (Rupees _____) only as my / our security deposit determined by you in terms of the regulations made under section 47 of the Electricity Act, 2003 and as per estimate prepared by you and sent to me / us from your end vide your letter no. _____ dated _____.

7. I / We undertake to replenish any shortfall in security deposit if and when required and for the value of meter(s) and other apparatus installed / to be installed at my / our premises.
8. I / We enclose a Test Form for internal wiring signed by my / our licensed electrical contractor.
9. I / We also enclose a Way Leave permission in Form – 1 for erection and fixing of necessary apparatus on or within the premises.
10. I / We also enclose copies of documents showing in principle clearance for establishment from the West Bengal Pollution Control Board concerned.
11. I / We also enclose copy / copies of
- (i)) Any other documents
 - (ii)) of which compliances
 - (iii)) are called for
12. Please provide me / us with the service as requested.

Yours faithfully,

Enclosed: As stated.

(Signature of the applicant(s) with date)

Full Name _____

(In Block letters) _____

Full Address: _____

(In Block letters) _____

Telephone No(s), _____
if any.

Witness (1)

Signature with date _____

Full Name _____

Address _____

Witness (2)

Signature with date _____

Full Name _____

Address _____

For use of the licensee / supplier

(To be filled up by the licensee/supplier on receipt of the application-cum-agreement form submitted by the intending consumer and the duplicate is to be handed over to the latter)

Accepted for and on
Behalf of the licensee/supplier

(Signature with date of the accepting official under the stamp/office
seal of the licensee/supplier)

Address: _____

Annexure – C

Annual Report
(See regulation 16)

Name of the Licensee —

Full office address (HQ) of the licensee.

Report for the financial year

I. Number and type of the consumer complaints received, attended and compensation paid (if any):—

Types complaint	Number of Complaint received.	Whether attended.	Number of cases where compensation was payable.	Number of cases where compensation was paid.	Total amount (in Rs.) of the compensation paid.
-----------------	-------------------------------	-------------------	---	--	---

1. New connections where distributing main already exists.
2. New connections where extension of distributing main was required.
3. New connections where commissioning of a new substation was required.
4. Extension of load.
5. Unplanned interruptions.
6. Voltage related complaints.
7. Meter related complaints.

8. Modifications to the existing connections.

9. Others.

II. Planned interruptions in power supply:-

- | | | |
|--|-------------|---|
| 1. No. of instances of planned interruptions in power supply in | L T network | — |
| | H T network | — |
| 2. Total duration in hours of planned interruptions in power supply in | L T network | — |
| | H T network | — |

Signature of the authorised person with seal

By order of the Commission,

Place : Kolkata
Dated : 31st May, 2010.

K. L. BISWAS,
Secretary of the Commission.